

CHAPTER 29

National Insurance Act, 1953

ARRANGEMENT OF SECTIONS

Section

1. Maternity grant.
2. Abolition of attendance allowance.
3. Amendments of principal Act consequential on ss. 1 and 2.
4. Home confinement grant.
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6. General provisions as to maternity allowances.
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11. Transitional provisions.
12. Provisions as to appointed day.
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SCHEDULES:

First Schedule—Consequential Amendments of National Insurance Act, 1946, and Regulations thereunder.

Second Schedule—Transitional Provisions.

An Act to amend the National Insurance Acts, 1946 to 1952, in relation to maternity benefit and persons entitled thereto; and for purposes connected with the matter aforesaid.
[14th July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Maternity
grant.

1.—(1) As from the appointed day the provisions of this section shall have effect as respects maternity grants under the National Insurance Act, 1946 (hereafter in this Act referred to as "the principal Act").

(2) The amount of a maternity grant shall be nine pounds instead of four pounds.

(3) The provisions of the principal Act as to maternity grants shall apply in relation to a woman who—

(a) satisfies the contribution conditions for a maternity allowance, or

(b) satisfies any contribution conditions which she is required to satisfy in order to become entitled to a maternity allowance at a reduced rate by virtue of regulations under section twenty-five of the principal Act,

as they apply in relation to a woman who satisfies the contribution conditions for a maternity grant.

(4) In the contribution conditions for a maternity grant contained in paragraph 2 of the Third Schedule to the principal Act, for the condition that not less than twenty-six contributions of the appropriate class have been paid by or credited to the relevant person in respect of the last complete contribution year before the relevant time, there shall be substituted the condition that not less than twenty-six such contributions have been paid by or credited to the relevant person in respect of the last complete contribution year before the beginning of the benefit year comprising the relevant time.

In this subsection references to a contribution year and to a benefit year are references to periods which are respectively a contribution year and a benefit year in relation to the relevant person.

(5) In the conditions for entitlement to a maternity grant contained in subsection (1) of section fourteen of the principal Act, for the condition that it has been certified by a qualified practitioner that the woman has been confined, there shall be substituted the condition that the woman has been confined.

(6) For the provisions of subsection (5) of the said section fourteen as to a woman certified to have been confined of twins or a greater number of children there shall be substituted a power by regulations to provide that a woman confined of twins or a greater number of children shall, if the other conditions for the payment of a maternity grant are satisfied in respect of the confinement, be entitled to a maternity grant for each of them.

(7) The power conferred by subsection (6) of the said section fourteen to make regulations as respects cases where it is certified that it is to be expected that a woman will be confined shall have effect as a power to make regulations providing that the provisions of that section shall apply to a woman, in a case where her claim indicates that she so desires, with the substitution, for the condition that she has been confined, of the condition that she is pregnant and has reached a stage in her pregnancy which is not more than the prescribed number of contribution weeks before that in which it is to be expected that she will be confined, including power by the regulations to modify the contribution conditions for a maternity grant in their application to such a case.

(8) For the provision contained in subsection (1) of the said section fourteen that a woman shall not be entitled to a maternity grant by virtue both of her own and of her husband's insurance there shall be substituted a provision that (except as may be otherwise provided in the case of women confined of twins or a greater number of children) a woman shall not be entitled to more than one maternity grant in respect of any one confinement.

Abolition of attendance allowance.

2. As from the appointed day the provisions of the principal Act as to attendance allowances shall cease to have effect.

Amendments of principal Act consequential on ss. 1 and 2.

3. In accordance with the two preceding sections the provisions of the principal Act specified in Part I of the First Schedule to this Act shall have effect as from the appointed day subject to the amendments specified in the said Part I.

Home confinement grant.

4.—(1) As from the appointed day maternity benefit shall include an additional description of grant to be known as home confinement grant and the following provisions of this section shall have effect as respects that description of grant.

(2) The amount of a home confinement grant shall be three pounds.

(3) The following section shall be inserted after section fourteen of the principal Act:—

“14A.—(1) Subject to the provisions of this Act, a woman shall be entitled to a home confinement grant if—

(a) she has been confined ;

(b) her confinement did not take place in accommodation provided under the national health service or under Part III of the National Assistance Act, 1948, or in accommodation of a description prescribed by regulations under this section, or in the course of transit to accommodation of any description falling within this paragraph ; and

(c) she has claimed a maternity grant in respect of the confinement in question (whether the claim was made after or in expectation of the confinement) and her claim has been allowed.

(2) Regulations may provide that, in such cases as may be specified in the regulations, a confinement which takes place in accommodation such as is referred to in paragraph (b) of the preceding subsection, or in the course of transit to any such accommodation, shall be treated for the purposes of that subsection as if it had not taken place in, or in the course of transit to, accommodation of a description falling within that paragraph.

(3) A woman shall not be entitled to a home confinement grant in respect of a confinement taking place outside Great Britain.

(4) For the purposes of this section a woman's confinement shall be deemed to take place at the time when her labour results in the issue of a child, or, if she is confined of twins or a greater number of children, at the time when her labour results in the issue of the first of them.

(5) In this section the expression "accommodation provided under the national health service" means hospital accommodation being either—

- (a) accommodation maintained or administered under the National Health Service Act, 1946, or under the National Health Service (Scotland) Act, 1947, or
- (b) accommodation not so maintained or administered in which medical, nursing or other services are provided in pursuance of arrangements made by a Regional Hospital Board constituted under either of those Acts ;

and for the purposes of this definition the expression "hospital accommodation" has the same meaning as in those Acts :

Provided that accommodation in which a woman is, or to which she is in the course of transit, when her confinement takes place shall, in relation to that confinement, be deemed not to be accommodation falling within paragraph (b) of this subsection if she is not there (or is not to be there, as the case may be) in pursuance of arrangements such as are mentioned in that paragraph ".

5. In accordance with the last preceding section the provisions of the principal Act specified in Part II of the First Schedule to this Act shall have effect as from the appointed day subject to the amendments specified in the said Part II.

Amendments
of principal
Act
consequential
on s. 4.

6.—(1) As from the appointed day the provisions of this section shall have effect as respects maternity allowances.

General
provisions as to
maternity
allowances.

(2) The weekly rate of a maternity allowance shall be thirty-two shillings and sixpence instead of thirty-six shillings.

(3) For the period of thirteen weeks specified in subsection (2) of section fifteen of the principal Act as that for which, subject as therein mentioned, a maternity allowance is payable there shall be substituted the period of eighteen weeks beginning with the eleventh week before the expected week of confinement (as defined in subsection (7) of this section).

(4) For the purposes of a right to a maternity allowance a woman shall not be credited with contributions by virtue of regulations made under section fifty-nine of the principal Act (which provides for the making of regulations under which married women may be excepted from insurance or from liability

to pay contributions and, for the purposes of a maternity allowance, may be credited with contributions which they would otherwise have been liable to pay), and any contributions so credited before the appointed day shall be disregarded.

(5) In the contribution conditions for a maternity allowance set out in paragraph 3 of the Third Schedule to the principal Act, for the condition that not less than forty-five contributions of the appropriate class have been paid by or credited to the claimant in respect of the fifty-two weeks immediately preceding the period for which the allowance is payable, there shall be substituted the condition that not less than fifty contributions of the appropriate class or their equivalent have been paid by or credited to the claimant in respect of the fifty-two weeks immediately preceding the thirteenth week before the expected week of confinement (as defined in subsection (7) of this section).

(6) Nothing in the last preceding subsection shall be construed as enabling contributions other than those of the appropriate class to be reckoned towards the twenty-six contributions referred to in the said contribution conditions.

(7) In the conditions for entitlement to a maternity allowance contained in subsection (1) of section fifteen of the principal Act, for the condition that it has been certified by a qualified practitioner that it is to be expected that the woman will be confined as mentioned in paragraph (a) of that subsection, there shall be substituted the condition that the woman is pregnant and has reached a stage in her pregnancy which is not more than the prescribed number of weeks before the week in which it is to be expected that she will be confined (in this section referred to as the "expected week of confinement").

(8) Regulations may provide that a woman who has become entitled to a maternity allowance shall cease to be entitled thereto if her pregnancy is terminated otherwise than by confinement.

(9) Regulations may provide for disqualifying a woman for receiving a maternity allowance to which she has become entitled if, at a time before her confinement occurs, she fails without good cause to attend for or to submit herself to any medical examination required in accordance with the regulations.

(10) For the power conferred by subsection (4) of the said section fifteen to make regulations as respects cases where it is certified by a qualified practitioner that a woman has been confined there shall be substituted a power to make regulations modifying subsections (1) and (2) of that section in relation to cases where a woman has been confined and either—

(a) she has not made a claim for a maternity allowance in respect of expectation of that confinement (other than any claim which has been disallowed), or

- (b) she has made a claim for a maternity allowance in respect of expectation of that confinement (other than a claim which has been disallowed) but the date of the confinement was more than eleven weeks before the expected week of confinement,

including power by the regulations to modify the contribution conditions for a maternity allowance, in their application to such cases, by substituting references to the week comprising the date of the confinement for references to the expected week of confinement.

(11) For the provision made by paragraph (b) of the proviso to subsection (2) of the said section fifteen for prolonging the payment of a maternity allowance where the date of the confinement occurs after the week certified as that in which it was to be expected that the woman would be confined there shall be substituted a power by regulations to provide, as respects cases where the date of the confinement occurs after the end of the expected week of confinement, for extending the period of eighteen weeks referred to in subsection (3) of this section until the end of such week (not being later than the sixth week after that in which the date of the confinement occurs) as may be prescribed by the regulations.

(12) In this section the expression "week" means a contribution week.

7.—(1) The power conferred by section twenty-five of the principal Act, in relation to benefit of the descriptions specified in subsection (1) of that section, to provide by regulations for entitlement to benefit on a reduced scale in cases where a person would be entitled to the benefit but for the fact that the relevant contribution conditions are not satisfied, shall be extended so as to enable the like provision to be made for entitlement to a maternity allowance at a reduced rate in cases where a woman would be entitled to the allowance but for the fact that the contribution conditions for a maternity allowance, though satisfied as respects the twenty-six contributions required to have been actually paid, are not satisfied as respects the fifty contributions required to have been paid by or credited to the claimant.

Partial satisfaction of contribution conditions for maternity allowance.

(2) In the preceding subsection the reference to the contribution conditions for a maternity allowance includes a reference to those conditions as modified by regulations in their application to cases such as are referred to in subsection (10) of the last preceding section.

8.—(1) Regulations may provide that, in such cases as may be prescribed, the weekly rate of a maternity allowance shall, for the periods specified in the following provisions of this section, be increased by the amounts specified in those provisions.

Provision for increasing maternity allowance in certain cases.

(2) The said periods are (with the necessary modifications) the same as those mentioned respectively in subsection (1) of section twenty-three and subsection (2) of section twenty-four of the principal Act (which provide for increases of benefit, other than maternity allowance, in certain cases), that is to say:—

- (a) any period for which the beneficiary has a family which includes a child or children ;
- (b) any period during which the beneficiary is wholly or mainly maintaining her husband who is incapable of self-support ;
- (c) any period during which the beneficiary has residing with her and is wholly or mainly maintaining such other relative as may be prescribed, being a relative in relation to whom such further conditions as may be prescribed are fulfilled ;
- (d) any period during which some female person (not being a child) has the care of a child or children of the beneficiary's family, being a person in relation to whom such further conditions as may be prescribed are fulfilled.

(3) The amounts of the said increases are as follows:—

- (a) for any period for which the beneficiary has a family which includes a child or children, ten shillings and sixpence in respect of that child or the elder or eldest of those children, and, for any such period for which the family includes two or more of those children, two shillings and sixpence in respect of each of those children other than the elder or eldest of them ;
- (b) for any such period as is mentioned in paragraphs (b) to (d) of the last preceding subsection, twenty-one shillings and sixpence, so however that the rate of a maternity allowance shall not for any one period be increased under this paragraph by more than one such amount.

(4) The two last preceding subsections shall be taken to apply as respects a child or children born to the beneficiary on the occasion of the relevant confinement (that is to say, the confinement by reason of whose actual or expected occurrence she became entitled to a maternity allowance) as they would apply as respects any other child of the beneficiary's family.

(5) Subsection (4) of section twenty-four of the principal Act (which defines "relative" for the purposes of that section) shall apply for the purposes of this section.

9. In accordance with the three last preceding sections the provisions of the principal Act specified in Part III of the First Schedule to this Act, and the regulations specified in the said Part III, shall have effect as from the appointed day subject to the amendments specified in the said Part III.

Amendments of principal Act and regulations consequential on ss. 6-8.

10.—(1) A woman who has been confined, and is entitled to a maternity grant in respect of that confinement (or would be so entitled if she made the necessary claim), shall, if the date of the confinement occurs on or after the appointed day, not be entitled to unemployment or sickness benefit in respect of any day falling within the period of four weeks beginning with the date of the confinement.

Restriction on right to unemployment or sickness benefit.

(2) The preceding subsection shall apply in relation to a woman whose pregnancy is terminated otherwise than by confinement after she has become entitled to a maternity grant in expectation of her confinement, as if she had been confined and the date of the confinement were the date on which her pregnancy is so terminated.

11. The transitional provisions set out in the Second Schedule to this Act shall have effect for the purposes of the preceding provisions of this Act.

Transitional provisions.

12.—(1) In this Act the expression "the appointed day" means, subject to the following provisions of this section, such day as the Minister may by order appoint, and different days may be appointed for different purposes of this Act or for the same purpose in relation to different cases or classes of case.

Provisions as to appointed day.

(2) Any order under this section may, if the day thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplementary provisions as appear to the Minister to be necessary or expedient as respects the period or any part of the period when this Act is to have a partial operation only and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any provisions of the principal Act affected by this Act.

(3) The power to make orders under this section shall be exercisable by statutory instrument and shall include power to vary or revoke any order so made by a subsequent order.

13.—(1) Any power conferred by this Act to make regulations shall be without prejudice to the generality of any power to make regulations conferred by any provision of the principal Act.

Provisions as to regulations.

(2) Without prejudice to the construction of this Act as one with the principal Act, section seventy-five of the principal Act (which contains general provisions as to regulations and other instruments under that Act) and, except where expressly excluded, section seventy-seven of that Act (which relates to the consideration of regulations by the Advisory Committee) shall apply for the purposes of any power to make regulations under this Act.

(3) Any power conferred by this Act to make regulations shall be exercisable by statutory instrument, and any instrument containing any such regulations shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) In the application of section seventy-seven of the principal Act to any regulations made under a power conferred by this Act, the reference in subsection (5) of that section to the laying of regulations before Parliament in pursuance of section seventy-six of that Act shall be construed as a reference to the laying thereof before Parliament in pursuance of the last preceding subsection.

Short title,
citation,
construction
and extent.

14.—(1) This Act may be cited as the National Insurance Act, 1953, and this Act and the National Insurance Acts, 1946 to 1952, may be cited together as the National Insurance Acts, 1946 to 1953.

(2) This Act shall be construed as one with the National Insurance Act, 1946.

(3) Without prejudice to the last preceding subsection, paragraphs (a) and (b) of subsection (1) of section sixteen of the principal Act (which define “confinement” and references to the date of the confinement for the purposes of the provisions of that Act relating to maternity benefit) shall apply for the purposes of all the provisions of this Act.

(4) References in this Act to any other enactment shall, except in so far as the context otherwise requires, be construed as references to that enactment as amended or extended by or under any other enactment, including this Act.

(5) Where by any provision of this Act an amount or rate is specified as that which is, or by virtue of this Act is to be, the amount or rate of benefit of any description, the amount or rate so specified shall be taken to be that which has effect, or, as the case may be, is to have effect, subject to the exercise of any power conferred by or under the principal Act or this Act whereby benefit may be increased or reduced in particular cases or classes of case.

(6) Without prejudice to the operation, in relation to any matters arising out of this Act, of any provision of the National Insurance Act, 1946, relating to Northern Ireland, this Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Sections 3, 5, 9.

CONSEQUENTIAL AMENDMENTS OF NATIONAL INSURANCE ACT, 1946,
AND REGULATIONS THEREUNDER

PART I

AMENDMENTS CONSEQUENTIAL ON PROVISIONS AS TO MATERNITY
GRANT AND ATTENDANCE ALLOWANCE

1. In paragraph (c) of subsection (1) of section ten of the principal Act the words "attendance allowance" shall be omitted.

2. The following section shall be substituted for section fourteen of the principal Act:—

"14.—(1) Subject to the provisions of this Act, a woman shall be entitled to a maternity grant if she has been confined and either—

(a) she or her husband satisfies the relevant contribution conditions, or

(b) she satisfies the contribution conditions for a maternity allowance or satisfies any contribution conditions which she is required to satisfy in order to become entitled to a maternity allowance at a reduced rate by virtue of regulations under section twenty-five of this Act.

(2) Except where regulations otherwise provide, a woman shall not be entitled to a maternity grant in respect of a confinement if on the date of the confinement she is outside Great Britain.

(3) Regulations may provide that a woman confined of twins or a greater number of children shall, if the other conditions for the payment of a maternity grant are satisfied in respect of the confinement, be entitled to a maternity grant for each of them.

(4) Regulations may provide that the provisions of this section shall apply to a woman, in a case where her claim indicates that she so desires, with the substitution, for the condition that she has been confined, of the condition that she is pregnant and has reached a stage in her pregnancy which is not more than the prescribed number of contribution weeks before that in which it is to be expected that she will be confined, and may modify the contribution conditions for a maternity grant in their application to such a case.

(5) Subject to the provisions of subsection (3) of this section, a woman shall not be entitled to more than one maternity grant in respect of any one confinement.

(6) For the purposes of this section the expression "husband" includes a widow's late husband, where the benefit is claimed in respect of a posthumous son or daughter of his".

3. Paragraph 3 of Part I of the Second Schedule to the principal Act shall be omitted, and in paragraph 1 of Part II of that Schedule for the entry "4.0.0" there shall be substituted the entry "9.0.0".

1st SCH.
—cont.

4. In sub-paragraph (1) of paragraph 2 of the Third Schedule to the principal Act the words “or an attendance allowance” shall be omitted.

5. In head (b) of sub-paragraph (1) of paragraph 2 of the said Third Schedule, for the words “the relevant time” there shall be substituted the words “the beginning of the benefit year comprising the relevant time”, and at the end of that paragraph the following shall be inserted:—

“(c) references to a contribution year and to a benefit year are references to periods which are respectively a contribution year and a benefit year in relation to the relevant person”.

PART II

AMENDMENTS CONSEQUENTIAL ON PROVISIONS AS TO HOME CONFINEMENT GRANT

6. In paragraph (c) of subsection (1) of section ten of the principal Act, after the words “maternity grant” there shall be inserted the words “home confinement grant”, and in paragraph (a) of subsection (2) of that section, after the words “maternity grant” there shall be inserted the words “a home confinement grant”.

7. In Part II of the Second Schedule to the principal Act, after paragraph 1 there shall be inserted the following paragraph:—

“1A. Home confinement grant3 0 0.”

PART III

AMENDMENTS CONSEQUENTIAL ON PROVISIONS AS TO MATERNITY ALLOWANCE

8. The following section shall be substituted for section fifteen of the principal Act:—

“15.—(1) Subject to the provisions of this Act, a woman shall be entitled to a maternity allowance if—

(a) she is pregnant and has reached a stage in her pregnancy which is not more than the prescribed number of weeks before the week in which it is to be expected that she will be confined (in this section referred to as the “expected week of confinement”); and

(b) she satisfies the relevant contribution conditions.

(2) Subject to the following provisions of this section, the period for which a maternity allowance is payable shall be the period of eighteen weeks beginning with the eleventh week before the expected week of confinement.

(3) A woman who has become entitled to a maternity allowance shall cease to be entitled thereto if she dies before the beginning of the period mentioned in the last preceding subsection; and if such a woman dies after the beginning but before the end of that period the allowance shall not be payable for any week subsequent to that in which she dies.

(4) Regulations may provide that a woman who has become entitled to a maternity allowance shall cease to be entitled thereto if her pregnancy is terminated otherwise than by confinement.

(5) Regulations may make provision, as respects cases where the date of the confinement occurs after the end of the expected week of confinement, for extending the period referred to in subsection (2) of this section until the end of such week (not being later than the sixth week after that in which the date of the confinement occurs) as may be prescribed by the regulations.

1ST SCH.
—cont.

(6) Regulations may modify subsections (1) to (3) of this section in relation to cases where a woman has been confined and either—

- (a) she has not made a claim for a maternity allowance in respect of expectation of that confinement (other than any claim which has been disallowed), or
- (b) she has made a claim for a maternity allowance in respect of expectation of that confinement (other than a claim which has been disallowed) but the date of the confinement was more than eleven weeks before the expected week of confinement,

and may modify the contribution conditions for a maternity allowance, in their application to such cases, by substituting references to the week comprising the date of the confinement for references to the expected week of confinement.

(7) Regulations may provide for disqualifying a woman for receiving a maternity allowance if—

- (a) during the period for which the allowance is payable she does any work as an employed or self-employed person or fails without good cause to observe any prescribed rules of behaviour ; or
- (b) at any time before her confinement occurs she fails without good cause to attend for or to submit herself to any medical examination required in accordance with the regulations.

(8) In this section the expression “week” means a contribution week”.

9. In subsection (1) of section sixteen of the principal Act, paragraph (c) shall be omitted.

10. In subsection (1) of section twenty-five of the principal Act, after the words “sickness benefit” there shall be inserted the words “a maternity allowance”, and for the words from “the fact” to the end of the subsection there shall be substituted the words “the fact—

- (a) in the case of benefit of any description other than maternity allowance, that the relevant contribution conditions are not satisfied as respects the number of contributions paid or credited in a contribution year or the yearly average of contributions paid or credited ;
- (b) in the case of maternity allowance, that the relevant contribution conditions, though satisfied as respects the twenty-six contributions required to have been actually paid, are not satisfied as respects the fifty contributions required to have been paid by or credited to the claimant.

1ST SCH.
—*cont.*

In paragraph (b) of this subsection, the reference to the relevant contribution conditions includes a reference to those conditions as modified by regulations in their application to cases falling within subsection (6) of section fifteen of this Act".

11. In subsection (2) of section fifty-nine of the principal Act, paragraph (b) shall be omitted.

12. Paragraph 4 of Part I of the Second Schedule to the principal Act shall be amended by substituting for the entry "36 0" in the second column thereof the entry "32 6" and by inserting in the third, fourth and fifth columns thereof the entries "10 6", "2 6" and "21 6" respectively.

13. At the end of Part I of the Second Schedule to the principal Act there shall be inserted the following note:—

"Note.—The increases of maternity allowance specified in the third, fourth and fifth columns above apply only in so far as provided for by regulations under section eight of the National Insurance Act, 1953".

14. The following paragraph shall be substituted for paragraph 3 of the Third Schedule to the principal Act:—

"3. The contribution conditions for a maternity allowance are that—

(a) not less than fifty contributions of the appropriate class or their equivalent have been paid by or credited to the claimant in respect of the fifty-two weeks immediately preceding the thirteenth week before the expected week of confinement (as defined for the purposes of section fifteen of this Act); and

(b) of those contributions not less than twenty-six are contributions of the appropriate class actually paid".

15. In the National Insurance (Married Women) Regulations, 1948, Regulation nine shall cease to have effect.

Section 11.

SECOND SCHEDULE

TRANSITIONAL PROVISIONS

PART I

MATERNITY GRANT, ATTENDANCE ALLOWANCE AND HOME CONFINEMENT GRANT

1. Nothing in sections one to three of this Act shall affect entitlement to, or the amount or rate of, a maternity grant or attendance allowance in respect of a confinement occurring before the appointed day.

2. Where immediately before the appointed day a woman is entitled to a maternity grant by virtue of regulations made under subsection (6) of section fourteen of the principal Act, nothing in section one or section three of this Act shall affect her entitlement to, or the amount of, that grant, or confer upon her a right to any further grant in respect of the confinement in expectation of which she became entitled to that grant.

3. Regulations may provide for increasing to nine pounds the amount of a maternity grant to which a woman has become entitled before the appointed day (whether payment has already been made or not) if the confinement in question has not occurred before the appointed day and her pregnancy has not been otherwise terminated before that day.

2ND SCH.
—cont.

4.—(1) In paragraph (a) of subsection (3) of section one of this Act, and in paragraph (b) of subsection (1) of the section substituted for section fourteen of the principal Act by paragraph 2 of the First Schedule to this Act, the reference to the contribution conditions for a maternity allowance shall be construed as a reference to those conditions as set out in paragraph 14 of the First Schedule to this Act.

(2) The preceding sub-paragraph shall have effect for the purposes of a woman's claim for a maternity grant notwithstanding that, by virtue of Part II of this Schedule, the contribution conditions which she is required to satisfy for the purposes of her claim for a maternity allowance are those contained in paragraph 3 of the Third Schedule to the principal Act.

5. Sections four and five of this Act shall not have effect in relation to a confinement occurring before the appointed day.

PART II

MATERNITY ALLOWANCE

6.—(1) In this Part of this Schedule—

“the old provisions” means the provisions of the principal Act as to maternity allowances and includes any regulations made under those provisions or having effect for the purposes thereof :

“the new provisions” means the said provisions of the principal Act as amended by the First Schedule to this Act and includes any regulations made under those provisions as so amended or made by virtue of section seven or eight of this Act and any regulations having effect for the purposes of those provisions as so amended or for the purposes of any regulations made by virtue of the said section seven or eight :

“the transitional period” means the period of sixty-five weeks beginning with the appointed day.

(2) References in this Part of this Schedule to the application of any provisions to a woman in respect of a confinement are references to the application of those provisions to her in relation either to the expectation of that confinement or to the actual occurrence thereof.

(3) Where in accordance with the following provisions of this Part of this Schedule the old provisions are to apply to a woman in respect of a confinement, those provisions shall so apply as if sections six to nine of this Act had not been enacted.

2ND SCH.
—cont.

7.—(1) The new provisions shall not apply to a woman in respect of a confinement—

- (a) if her claim for a maternity allowance is made in expectation of the confinement and the expected week of confinement (as defined for the purposes of section fifteen of the principal Act) is a week ending before the appointed day ; or
- (b) if her claim for a maternity allowance is made by virtue of a certificate that she has been confined and the date of the confinement was before the appointed day.

(2) In any case falling within the preceding sub-paragraph the old provisions shall apply to the woman in respect of the confinement in question.

8.—(1) Regulations may provide that in any case where—

- (a) a woman claims a maternity allowance in expectation of her confinement and the week in which it is to be expected that she will be confined falls within the transitional period, or
- (b) a woman claims a maternity allowance by virtue of the fact that she has been confined and the confinement occurred within that period,

then, if she elects in the prescribed manner to have her claim dealt with in accordance with the old provisions, those provisions shall apply to her in respect of that confinement and the new provisions shall not apply to her in respect thereof.

(2) For the purpose of securing that, in cases falling within the preceding sub-paragraph, the old provisions shall apply for the purposes of a claim where they would operate more favourably for the claimant than the new provisions, regulations under this paragraph may provide that, in such circumstances as may be specified in the regulations, a woman shall be deemed to have made such an election as is mentioned in that sub-paragraph unless she signifies in the prescribed manner her intention not to do so.

9.—(1) Regulations under the last preceding paragraph may provide for adjusting the weekly rate of a maternity allowance payable to a woman in accordance with the old provisions, where those provisions apply by virtue of the regulations, if any benefit under the principal Act is payable to her in respect of any of the five weeks immediately preceding the sixth week before the relevant week.

(2) In the preceding sub-paragraph the expression “the relevant week”—

- (a) in a case where the allowance is payable by virtue of a certificate that it is to be expected that the woman will be confined in a week specified in the certificate, means the week so specified ; and
- (b) in any other case, means the week comprising the date of the confinement.

(3) Subject to the following sub-paragraph, the regulations shall not provide for adjusting the weekly rate of a maternity allowance so as to bring that rate lower than thirty-two shillings and sixpence.

2ND SCH.
—cont.

(4) The adjustment of the rate of an allowance by virtue of regulations under the last preceding paragraph shall not prevent the further adjustment thereof by virtue of regulations under section thirty of the principal Act (which makes general provision as respects overlapping benefits).

10.—(1) Where in accordance with regulations under paragraph 8 of this Schedule the old provisions apply to a woman in respect of a confinement, subsection (2) of section fifteen of the principal Act shall apply as if paragraph (b) of the proviso thereto (which provides for continuing the payment of a maternity allowance if the confinement occurs later than the expected week of confinement) were omitted.

(2) Regulations may provide for continuing the payment of a maternity allowance in cases where, but for the preceding sub-paragraph, the payment thereof would have been continued by virtue of the said paragraph (b):

Provided that—

- (a) the payment of a maternity allowance shall not be continued by virtue of the regulations later than the end of the sixth week after the week in which the confinement occurs; and
- (b) as respects any period for which the payment of a maternity allowance is so continued, the weekly rate thereof shall be such rate, not exceeding thirty-two shillings and sixpence, as may be prescribed.

11.—(1) The following sub-paragraph shall have effect in any case where—

- (a) a woman claims a maternity allowance in expectation of her confinement and the week in which it is to be expected that she will be confined is a week beginning on or after the appointed day, or a woman claims such an allowance by virtue of the fact that she has been confined and the confinement occurred on or after that day; and
- (b) the application to her of the new provisions in respect of the confinement in question is not excluded by virtue of regulations under paragraph 8 of this Schedule; and
- (c) the period for which the allowance would be payable in accordance with the new provisions, if sections six to nine of this Act came into operation immediately on the passing of this Act, is a period beginning before the appointed day.

(2) In any such case as aforesaid the old provisions shall apply to her in respect of the confinement in question for the purpose of determining whether she is entitled to the allowance for any week or part of a week beginning before the appointed day, and, if so, at what rate the allowance is to be payable for that week or part of a week, and the new provisions shall so apply for the purpose

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—cont.

of determining whether she is entitled to the allowance for any week beginning on or after the appointed day, and, if so, at what rate and for what period after that day the allowance is to be payable.

12. Subject to the preceding provisions of this Part of this Schedule, in any case where—

- (a) a woman claims a maternity allowance in expectation of her confinement and the week in which it is to be expected that she will be confined is a week beginning on or after the appointed day, or
- (b) a woman claims a maternity allowance by virtue of the fact that she has been confined and the confinement occurred on or after the appointed day,

the old provisions shall not apply to her in respect of the confinement in question, and the new provisions shall apply to her in respect thereof as if sections six to nine of this Act came into operation immediately on the passing of this Act.

13.—(1) So much of subsection (4) of section six of this Act as provides that a woman shall not be credited with contributions as mentioned in that subsection shall not have effect as respects any week before the end of the transitional period ; and paragraph 11 of the First Schedule to this Act shall be construed as not affecting the operation of any regulations as respects that period.

(2) Notwithstanding paragraph 15 of the First Schedule to this Act, Regulation nine of the National Insurance (Married Women) Regulations, 1948, shall continue to have effect until the end of the transitional period ; but any contributions credited to a woman by virtue of that regulation during that period shall be treated as credited only for the purposes of the old provisions in so far as those provisions are or may become applicable to her by virtue of the preceding provisions of this Part of this Schedule.

14. For the purposes of the application of the old provisions in accordance with the preceding provisions of this Part of this Schedule regulations may provide that any regulations made under section fifteen of the principal Act or having effect for the purposes of that section shall apply subject to such modifications as may be specified in the regulations under this paragraph.

PART III

SUPPLEMENTARY PROVISIONS

15. Section seventy-seven of the principal Act (which relates to the consideration of regulations by the Advisory Committee) shall not apply to any regulations made under this Schedule.

16.—(1) In this Schedule the expression “the principal Act” means the National Insurance Act, 1946, as amended or extended by or under any other enactment, excluding this Act, and the expression “week” means a contribution week.

(2) For the purposes of this Schedule a confinement shall be deemed to occur or have occurred on the date which is or was the date of the confinement.

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—cont.

(3) In this Schedule the expression “before the appointed day” (unless preceded by the word “immediately”) means at a time either before the passing of this Act or between the passing of this Act and the appointed day.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.

CHAPTER 30

An Act to provide for the federation of Southern Rhodesia, Northern Rhodesia and Nyasaland; and for purposes connected therewith. [14th July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows:—

1.—(1) Her Majesty may by an Order in Council—

Power by
Order in
Council to
establish
federation,
etc.

(a) provide for the federation of Southern Rhodesia, Northern Rhodesia and Nyasaland (in this section referred to as “the Territories”) and for that purpose—

(i) provide for the establishment of a Federal Government, a Federal Legislature, an African Affairs Board, a Federal Supreme Court and such other Federal authorities as may appear to Her Majesty to be necessary or expedient;

(ii) confer or provide for conferring on the said Government, Legislature, Board, Court and authorities, and on any other Governments, Legislatures,